

| <b>LINE #</b>                 | <b>CASE #</b> | <b>CASE TITLE</b>                                                               | <b>RULING</b>                                                                                                         |
|-------------------------------|---------------|---------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------|
| <a href="#"><u>LINE 1</u></a> | 18CV328915    | Uzair v. Google, LLC (Class Action)                                             | Hearing: Motion for Final Approval is GRANTED<br><br>Click on lines 1-2 for tentative ruling                          |
| <a href="#"><u>LINE 2</u></a> | 18CV328915    | Uzair v. Google, LLC (Class Action)                                             | Hearing: Motion for Fees and Costs is GRANTED<br><br>Click on lines 1-2 for tentative ruling                          |
| <a href="#"><u>LINE 3</u></a> | 19CV354554    | Leedeman v. Midland Credit Management, Inc. (Class Action)                      | Hearing: Motion for Final Approval GRANTED<br><br>Click on lines 3-4 for tentative ruling                             |
| <a href="#"><u>LINE 4</u></a> | 19CV354554    | Leedeman v. Midland Credit Management, Inc. (Class Action)                      | Hearing: Motion for Fees and Costs GRANTED<br><br>Click on lines 3-4 for tentative ruling                             |
| <a href="#"><u>LINE 5</u></a> | 22CV394263    | Garcia v. Norcal Pool Construction Inc. (Class Action/PAGA)                     | Motion: Preliminary Approval is GRANTED<br><br>Click on line 5 for tentative ruling                                   |
| <a href="#"><u>LINE 6</u></a> | 23CV413920    | Rangel v. President and Board of Trustees of Santa Clara College (Class Action) | Hearing: Discovery Motion to Enforce and Request for Sanctions is GRANTED<br><br>Click on line 6 for tentative ruling |
| <a href="#"><u>LINE 7</u></a> | 23CV426584    | Olguin v. Talamo Food Service, Inc. (PAGA)                                      | Motion: Approval GRANTED<br><br>Click on line 7 for tentative ruling                                                  |
| <a href="#"><u>LINE 8</u></a> | 23CV427637    | Fuentes v. La Cumbre Enterprises, Inc., et al. (PAGA)                           | Motion: Compel is GRANTED<br><br>Click on line 8 for tentative ruling                                                 |

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|-------------------------|------------|-----------------------------------------------------------|-------------------------------------------------------------------------------------------------|
| <a href="#">LINE 9</a>  | 24CV431503 | Mirza-Aliev v. 800 Moffett MV Manager, LLC (Class Action) | Hearing: Motion for Final Approval is GRANTED<br><br>Click on line 9 for tentative ruling       |
| <a href="#">LINE 10</a> | 24CV436504 | Vo v. Excite Credit Union (Class Action)                  | Motion: Preliminary Approval is GRANTED<br><br>Click on line 10 for tentative ruling            |
| <a href="#">LINE 11</a> | 24CV450382 | JEREMIAH JOHNSON vs APPLE, INC. (Class Action / PAGA)     | Hearing: Demurrer is SUSTAINED with leave to amend<br><br>Click on line 11 for tentative ruling |
| <a href="#">LINE 12</a> | 25CV469704 | K. K. vs TBMBM US, Inc. (Class Action)                    | Hearing: Demurrer is OVERRULED<br><br>Click on lines 12-13 for tentative ruling                 |
| <a href="#">LINE 13</a> | 25CV469704 | K. K. vs TBMBM US, Inc. (Class Action)                    | Hearing: Motion to Strike is DENIED<br><br>Click on lines 12-13 for tentative ruling            |

## Calendar Lines 1-2

**Case Name:** *Uzair, et al. v. Google LLC*

**Case No.:** 18CV328915

This is a class action rising from the automatic renewal of subscriptions for digital content through Defendant Google LLC's ("Google" or "Defendant") Google Play service.

Before the Court is Plaintiff Salvador De La O's motion for final approval and his motion for attorneys' fees, costs, and service awards, which is unopposed.<sup>1</sup> As discussed below, the Court GRANTS the motions.

### I. BACKGROUND

#### A. Google Play

Google develops and operates Google Play as the official software application or "App" store for the Android operating system, allowing consumers to browse and download Android Apps published by both Google and third-party developers. (First Amended Complaint ("FAC"), ¶¶ 23–25.) Google uses Google Play to offer digital products (including, for example, songs, movies, television shows, and periodicals) through paid subscriptions that are automatically renewed at the end of a definite term for a subsequent term, or that continue until the consumer cancels. (FAC, ¶ 26.) Plaintiffs refer to subscriptions purchased through Google Play as "In-App Subscriptions."

To make purchases through Google Play, whether for Google's or third parties' applications, consumers use Google Play's payment system, formerly known as Google Wallets and currently called Google Payments. (FAC, ¶ 27.) For its own apps and for third-party apps, Google enrolls subscribers, processes payments, and delivers the In-App subscriptions. Third-party developers never receive subscribers' payment information. (FAC, ¶ 28.)

To subscribe, consumers must have a Google Account with a Google ID and password and are required to set up a Google Payments Account by providing their payment information. (FAC, ¶ 29.) During this process, consumers must state that they agree to the Google Play Terms of Service and the Google Payments Terms of Service ("Legal Agreements"), the current versions of which are attached to the FAC. (*Ibid.*) Consumers accept the Google Play Terms of Service when first using the Google Play Store App and when making a new purchase after the Terms have been updated. (FAC, ¶ 33.) Consumers do not agree to the Google Play Terms of Service prior to each and every purchase. (*Ibid.*) Rather, when Google Play offers consumers an In-App Subscription, small text at the bottom of the screen states: "By tapping 'subscribe,' you agree to the Terms of Service – Android (US)," with a hyperlink to the Google Payments Terms of Service. (*Ibid.*)

#### B. Plaintiffs' General Allegations

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<sup>1</sup> Abdullah Uzair, Angel Chavez, and Nicolas Joel Luskin are also named Plaintiffs but they are not Class Representatives. The Court will refer to them collectively as "Plaintiffs."